CELERIS ROUTE, INC.

DRIVER SERVICES AGREEMENT

Account holder: Daniel Reyes
Driver account ID: CR-DRV-48217
Acceptance date: March 18, 2025
Agreement status: Accepted electronically

THIS AGREEMENT REQUIRES YOU TO ARBITRATE ANY DISPUTES ARISING OUT OF OR RELATING TO THE AGREEMENT IN AN INDIVIDUAL ARBITRATION AND NOT A CLASS ARBITRATION. YOU ACKNOWLEDGE AND UNDERSTAND THAT BY ACCEPTING THIS AGREEMENT, YOU WAIVE ANY RIGHT TO A TRIAL BY JURY IN CONNECTION WITH ANY CLAIM ARISING OUT OF OR RELATING TO THE AGREEMENT. ADDITIONALLY, YOU ACKNOWLEDGE AND UNDERSTAND THAT BY ACCEPTING THIS AGREEMENT, YOU WAIVE ANY RIGHT TO PARTICIPATE IN ANY TYPE OF CLASS ACTION OR CLASS PROCEEDING RELATING TO THE AGREEMENT, INCLUDING A CLASS ARBITRATION.

SECTION 1 — PARTIES AND AGREEMENT

This Driver Services Agreement (the “Agreement”) is entered into between Celeris Route, Inc. (“Celeris Route,” “Company,” “we,” “us,” or “our”) and the individual who accepts this Agreement through the Celeris Route driver application or website (“Driver,” “you,” or “your”).

This Agreement governs the Driver’s access to and use of the Celeris Route platform to provide food and other delivery services to customers as an independent contractor.

The Agreement becomes effective when the Driver electronically accepts it and remains in effect unless terminated in accordance with this Agreement.

By accepting this Agreement, the Driver acknowledges that the Driver has had an opportunity to review its terms and agrees to be bound by them.

SECTION 2 — INDEPENDENT CONTRACTOR RELATIONSHIP

The Driver provides delivery services to Celeris Route as an independent contractor and not as an employee, agent, partner, or joint venturer of Celeris Route.

Subject to the requirements of this Agreement and the Celeris Route platform, the Driver may determine when and whether to make himself or herself available to provide delivery services. The Driver is responsible for complying with all applicable laws and requirements relating to the Driver's work, vehicle, equipment, and performance of delivery services.

Nothing in this Agreement creates an employment relationship between Celeris Route and the Driver.

SECTION 3 — DRIVER ELIGIBILITY AND REQUIREMENTS

The Driver must satisfy and maintain all eligibility requirements communicated by Celeris Route for providing delivery services through the platform.

The Driver must provide accurate and complete information concerning the Driver’s identity, qualifications, and eligibility to provide delivery services.

The Driver is responsible for maintaining any licenses, registrations, permits, or other authorizations required by applicable law for the Driver’s delivery activities.

Celeris Route may request information or documentation reasonably necessary to confirm the Driver’s eligibility to provide delivery services through the platform.

The Driver must promptly notify Celeris Route if the Driver no longer satisfies a material eligibility requirement applicable to the Driver's delivery activities.

SECTION 4 — DELIVERY SERVICES AND PLATFORM USE

The Driver may use the Celeris Route platform to receive information concerning available delivery opportunities and, subject to the terms of this Agreement, provide delivery services to customers.

The Driver is responsible for performing accepted delivery services in a timely and professional manner and for following reasonable instructions and requirements communicated through the Celeris Route platform.

The Driver may determine when and whether to make himself or herself available to provide delivery services, subject to the requirements of this Agreement and the Celeris Route platform.

The Driver must use the Celeris Route platform in a manner that does not interfere with its security, integrity, or proper operation.

Celeris Route may establish reasonable operational requirements concerning the use of the platform and the performance of delivery services.

SECTION 5 — DRIVER ACCOUNT AND PERSONAL USE

To access the Celeris Route platform and provide delivery services, the Driver must maintain an individual driver account registered in the Driver's legal name.

The Driver's account is personal to the Driver. The Driver may not sell, transfer, assign, lend, or otherwise permit another person to use the Driver's account to access the platform or provide delivery services on the Driver's behalf.

The Driver is responsible for maintaining accurate account information and for taking reasonable steps to prevent unauthorized access to the account.

Celeris Route may require the Driver to verify his or her identity in connection with account access or the provision of delivery services.

SECTION 6 — IDENTITY AND FACIAL VERIFICATION

Celeris Route may require the Driver to complete identity verification before or during the Driver's use of the platform, including verification at or before the time the Driver begins providing delivery services on a given day.

Identity verification may include a photograph or other image of the Driver's face and may be compared with the identity information and verification materials associated with the Driver's account.

The Driver must personally complete any identity or facial-verification process required by Celeris Route and may not knowingly permit another person to complete such verification on the Driver's behalf.

A facial-verification result indicating that the person completing the verification does not appear to match the Driver may be considered by Celeris Route when determining whether the Driver has complied with this Agreement. A single facial-verification mismatch, standing alone, does not conclusively establish that the Driver knowingly permitted another person to use the account.

Celeris Route may consider facial-verification results together with other account, access, activity, and account-history information when reviewing suspected violations of this Agreement.

SECTION 7 — PASSWORD AND ACCOUNT SECURITY

The Driver is responsible for maintaining the confidentiality of any password, authentication credential, verification code, or other information used to access the Driver's Celeris Route account.

The Driver must not knowingly provide his or her password or other account credentials to another person or knowingly permit another person to use those credentials to access the Driver's account.

The Driver must take reasonable steps to protect the account from unauthorized access and must promptly notify Celeris Route if the Driver becomes aware of unauthorized access or believes that the account credentials may have been compromised.

Certain account functions, including identity or facial verification, may be available only after successful authentication to the Driver's account. Authentication of an account establishes that the person accessing the relevant function successfully accessed the account but does not, by itself, establish the identity of the person who entered or possessed the account credentials.

Celeris Route may consider account-authentication records together with facial-verification results and other relevant information when determining whether an account has been used in violation of this Agreement.

SECTION 8 — PRIVACY AND DATA USE

Celeris Route may collect, use, store, and process information relating to the Driver's account and use of the Celeris Route platform as reasonably necessary to provide and administer delivery services, maintain platform security, verify identity, prevent fraud or misuse, and enforce this Agreement.

Such information may include account information, device and authentication information, delivery activity, location information generated through use of the platform, communications, and identity-verification information, including photographs or other facial images submitted for verification.

Celeris Route may use information described in this Section together with other account records when investigating suspected violations of this Agreement or determining whether to suspend or terminate a Driver's account.

Celeris Route will handle and retain Driver information in accordance with applicable law and any privacy notice or policy applicable to the Driver.

SECTION 9 — VEHICLE AND EQUIPMENT REQUIREMENTS

The Driver is responsible for providing and maintaining any vehicle, mobile device, delivery equipment, and other equipment reasonably necessary to provide delivery services through the Celeris Route platform.

The Driver must ensure that any vehicle used to provide delivery services is legally permitted and maintained in a condition reasonably suitable for the delivery services being performed.

The Driver is responsible for complying with applicable requirements relating to the operation, registration, licensing, and use of any vehicle used in connection with delivery services.

Celeris Route may require the Driver to provide information or documentation reasonably necessary to confirm compliance with applicable vehicle or equipment requirements.

SECTION 10 — COMPLIANCE WITH LAWS AND PLATFORM REQUIREMENTS

The Driver must comply with all applicable federal, state, and local laws, regulations, and requirements relating to the Driver's provision of delivery services.

The Driver must also comply with reasonable safety, security, identity-verification, and operational requirements communicated by Celeris Route in connection with the use of the platform and provision of delivery services.

Nothing in this Agreement requires the Driver to comply with a platform requirement to the extent that compliance would violate applicable law.

SECTION 11 — PROHIBITED CONDUCT

The Driver must not engage in conduct that interferes with the integrity, security, or proper operation of the Celeris Route platform.

Without limiting the foregoing, the Driver must not:
(a) permit another person to use the Driver's account to access the Celeris Route platform or provide delivery services;
(b) knowingly provide another person with the Driver's password, authentication credentials, or other means of accessing the Driver's account;
(c) complete, or knowingly permit another person to complete, an identity or facial-verification process on the Driver's behalf; or
(d) provide false, misleading, or materially incomplete information to Celeris Route concerning the Driver's identity, account access, or use of the platform.

A violation of this Section may result in suspension or termination of the Driver's account in accordance with Section 12.

SECTION 12 — SUSPENSION AND TERMINATION

Celeris Route may suspend or terminate the Driver's access to the platform if Celeris Route reasonably determines that the Driver has violated this Agreement or that continued access presents a risk to the security, integrity, or proper operation of the platform.

Depending on the nature and circumstances of the conduct, Celeris Route may impose a temporary suspension, require additional identity verification, or terminate the Driver's account.

In determining the appropriate action, Celeris Route may consider the nature and seriousness of the suspected violation, whether the conduct was repeated, the Driver's prior account history, information provided by the Driver during a review or appeal, and any other circumstances reasonably relevant to the account or suspected violation.

Termination may be permanent where Celeris Route determines that the circumstances warrant permanent removal from the platform, including where the Driver has engaged in repeated or serious conduct affecting the integrity of the Driver account or identity-verification system.

Celeris Route may terminate the Driver's account immediately where permitted by applicable law and this Agreement.

SECTION 13 — REVIEW AND APPEAL

A Driver whose account has been suspended or terminated may request a review through the process designated by Celeris Route.

The Driver may provide information or an explanation relevant to the action taken against the account, including information concerning account access, identity verification, or circumstances that the Driver believes should be considered in reviewing the action.

Celeris Route will review the information reasonably available to it and may consider the Driver's submission together with account records, identity-verification results, authentication records, delivery activity, prior account history, and other relevant information.

Celeris Route may uphold, modify, or reverse the suspension or termination following its review.

A request for review does not automatically restore the Driver's access to the platform or require Celeris Route to permit the Driver to continue providing delivery services while the review is pending.

SECTION 14 — COMPENSATION AND PAYMENTS

The Driver will be eligible to receive compensation for completed delivery services in accordance with the rates, incentives, adjustments, and other payment terms communicated through the Celeris Route platform or otherwise applicable to the Driver.

Celeris Route may make adjustments to amounts payable to the Driver to account for applicable taxes, refunds, corrections, chargebacks, or other amounts permitted by law or this Agreement.

Celeris Route will make payments to the Driver using the payment method designated by the Driver or otherwise made available through the platform.

Any compensation earned before suspension or termination will remain subject to the applicable payment terms of this Agreement.

SECTION 15 — CHANGES TO AGREEMENT

Celeris Route may modify this Agreement from time to time by providing notice of the proposed changes to the Driver through the Celeris Route platform, by email, or through another reasonable method of communication.

A modification will become effective on the date specified in the notice, provided that the Driver has been given reasonable notice of the modification before it becomes effective.

A modification to the DecisionLayer Arbitration Clause or to any provision governing the resolution of disputes will not become effective without providing the Driver with notice of the material change and any applicable opportunity to opt out of the modified arbitration provisions.

Except as expressly provided in this Agreement, a modification to this Agreement will not retroactively alter rights or obligations arising before the effective date of the modification.

SECTION 16 — GOVERNING LAW

This Agreement and any dispute arising out of or relating to this Agreement shall be governed by and construed in accordance with the laws of the State of New York, without regard to its conflict-of-law rules, except to the extent that applicable federal law or a mandatory provision of another applicable law requires otherwise.

The parties acknowledge that federal law may apply to matters governed by the Federal Arbitration Act and that disputes subject to the DecisionLayer Arbitration Clause will be resolved in accordance with that clause.

SECTION 17 — NOTICES AND COMMUNICATIONS

Celeris Route may communicate with the Driver regarding the Driver’s account, delivery services, this Agreement, or other matters relating to the Driver’s relationship with Celeris Route through the Celeris Route platform, email, text message, or other contact information provided by the Driver.

The Driver is responsible for maintaining accurate and current contact information and for reviewing communications concerning the Driver’s account.

Where this Agreement requires Celeris Route to provide notice of a suspension, termination, material modification, or other action affecting the Driver’s rights under this Agreement, Celeris Route may provide such notice through the Celeris Route platform or by email to the address associated with the Driver’s account, unless applicable law requires another method of notice.

The parties may use electronic communications and records maintained through the Celeris Route platform to document notices, account activity, and other communications relating to this Agreement.

SECTION 18 — ENTIRE AGREEMENT AND SEVERABILITY

This Agreement, together with any policies or terms expressly incorporated into it, constitutes the entire agreement between Celeris Route and the Driver concerning the Driver’s use of the Celeris Route platform and supersedes prior agreements or understandings concerning the same subject matter.

If any provision of this Agreement is determined to be invalid or unenforceable, that provision shall be enforced to the fullest extent permitted by law, and the remaining provisions shall remain in full force and effect.

No failure or delay by either party in exercising a right or remedy under this Agreement shall constitute a waiver of that right or remedy.

SECTION 19 — ACCEPTANCE AND ELECTRONIC AGREEMENT

The Driver accepts this Agreement electronically through the Celeris Route platform by selecting the applicable acceptance option and submitting the acceptance.

By accepting this Agreement, the Driver acknowledges that the Driver has reviewed and agreed to the terms of this Agreement, including the DecisionLayer Arbitration Clause.

The electronic record of the Driver's acceptance, together with the version of the Agreement presented to the Driver at the time of acceptance, may be maintained by Celeris Route as a record of the parties' agreement.

SECTION 20 — DECISIONLAYER ARBITRATION

Any controversy or claim arising out of or relating to this agreement, including the interpretation, formation, breach, termination, validity, arbitrability or enforceability thereof, shall be settled by binding arbitration administered by Decision Science Research Corporation ("DecisionLayer") in accordance with its rules then in effect at https://www.decisionlayer.ai/rules (the "Rules"), and governed by the Federal Arbitration Act, 9 U.S.C. §§ 1-16, and the internal laws of the State of New York including NYS CPLR Article 75. Judgment on any arbitration award may be entered in any State or Federal Court located in New York State or any other court of competent jurisdiction. Subject to the Rules, DecisionLayer arbitrations will be conducted by an arbitrator utilizing DecisionLayer artificial intelligence systems or, upon mutual agreement of the parties, by DecisionLayer's artificial intelligence system itself. The parties agree that the arbitrator selection mechanisms set forth in the Rules constitute a substantial and valuable contract right, and the designated administration by DecisionLayer is an essential term of this agreement. THE PARTIES HERETO WAIVE ANY RIGHT TO A JURY TRIAL AND AGREE THAT ANY CLAIMS ARISING FROM OR RELATED TO THIS AGREEMENT MUST BE BROUGHT IN AN INDIVIDUAL CAPACITY, NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY CLASS OR REPRESENTATIVE PROCEEDING. Each party consents to receive service of process commencing an arbitration via the DecisionLayer website (if it has an account), by email, by registered mail pursuant to New York CPLR § 7503(c), or in accordance with applicable laws. Each party hereto waives any objection to service by these means. Any arbitration shall be conducted entirely virtually via the DecisionLayer platform. DecisionLayer has the authority to determine if a dispute is arbitrable. Each litigant's relationship with DecisionLayer is governed by the DecisionLayer Terms of Service available at https://www.decisionlayer.ai/terms. The invalidity of any portion of this arbitration provision shall not affect the validity of any other portion, and any invalid provision shall be modified to the least extent necessary to render it valid.

Electronic acceptance record: Daniel Reyes accepted the Driver Services Agreement electronically through the Celeris Route driver platform on March 18, 2025. The agreement version maintained with the acceptance record is the version reproduced in this document.

This document is a fictional sample-case record created for the DecisionLayer arbitration simulator.